

RESOLUTION NO. \_\_\_\_\_

**ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR SADDLE RIDGE, 7<sup>TH</sup> FILING, A REPLAT OF ALL OF LOT 2 AND A PORTION OF LOT 3, BLOCK 1, SADDLE RIDGE, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF US HIGHWAY 30 AND WHITNEY ROAD)."**

**WHEREAS**, Saddle Ridge, LLC, has subdivided said land in accordance with the statutes in such cases made and provided; and

**WHEREAS**, Saddle Ridge, LLC, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

**WHEREAS**, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

**NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT** the subdivision described as Saddle Ridge, 7<sup>th</sup> Filing, a replat of all of Lot 2 and a portion of Lot 3, Block 1, Saddle Ridge, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

**PRESENTED, READ AND ADOPTED THIS \_\_\_\_\_ DAY OF \_\_\_\_\_, 2015.**

\_\_\_\_\_  
RICHARD L. KAYSEN, MAYOR

(SEAL)  
ATTEST:

\_\_\_\_\_  
CAROL INTLEKOFER, CITY CLERK

## STAFF REPORT - SUMMATION

### Saddle Ridge, 7<sup>th</sup> Filing

Final Plat Process

**CASE NUMBER(s):** UDC-15-00425

**SUBDIVISION CODE:** SDRA

**PREPARED BY:** Josh Tetzlaff

**MEETING DATES:** August 3, 2015 – Planning Commission  
August 24, 2015 – City Council

**REQUIRED DOCUMENTS SUBMISSION:** The following required documents have been submitted and reviewed by staff.

- Complete Application
- Final Plat Map
- Drainage Worksheet
- Traffic Impact Study
- Environmental Impact Assessment

**RECOMMENDATION:** The Development Department recommends approval of the Final Plat pursuant to Section 2.1.3.d of the Cheyenne Unified Development Code (UDC), with the following three (3) conditions:

- 1) The words "subdivision" and "City of" are removed from the title block;
- 2) The donation statements are updated to donate the land to the City of Cheyenne, not the Parks and Recreation Department; and
- 3) Complete an agreement with WyDOT concerning future cost sharing when traffic control improvements at US Highway 30 and Whitney Road are warranted.

**PLANNING COMMISSION UPDATE:** At its regular meeting on August 3, 2015, the Planning Commission voted to approve the Final Plat for Saddle Ridge, 7<sup>th</sup> Filing with the following two (2) conditions:

- 1) The words "subdivision" and "City of" are removed from the title block; and
- 2) The donation statements are updated to donate the land to the City of Cheyenne, not the Parks and Recreation Department.

The Planning Commission opted not to include the third condition because it did not believe it should hold developers to making agreements with third parties.

**CITY COUNCIL RECOMMENDATION:** The Development Department recommends approval of the Final Plat, with the following two (2) conditions:

- 1) The words "subdivision" and "City of" are removed from the title block;
- 2) The donation statements are updated to donate the land to the City of Cheyenne, not the Parks and Recreation Department; and
- 3) Complete an agreement with WyDOT concerning future cost sharing when traffic control improvements at US Highway 30 and Whitney Road are warranted.

## STAFF REPORT

### **Saddle Ridge, 7<sup>th</sup> Filing**

Final Plat Process

**CASE NUMBER(s):** UDC-15-00425  
**PREPARED BY:** Josh Tetzlaff  
**MEETING DATES:** August 3, 2015 – Planning Commission  
August 24, 2015 – City Council

**SUBDIVISION CODE:** SDRA

**OWNER:** Saddle Ridge, LLC 307.634.8400  
William J. Edwards  
506 Shoshoni Street  
Cheyenne, WY 82009  
**AGENT:** Edwards Development, LLC 307.634.8800  
John Edwards  
506 Shoshoni Street  
Cheyenne, WY 82009s

**PROJECT:** Saddle Ridge, 7<sup>th</sup> Filing Final Plat

**WORK DESCRIPTIONS:** a replat of previously platted commercial lots to residential lots

**LOCATION:**

1. Legal Description: a replat of all of Lot 2 and a portion of Lot 3, Block 1, Saddle Ridge, Cheyenne, Wyoming
2. Location: Southeast corner of the intersection of US Highway 30 and Whitney Road
3. Address: N/A

**SIZE:** Total site: 15.74 acres

**CURRENT ZONING:** CB Community Business

**PROPOSED ZONING:** MR-2 Medium Density Residential, Developing

**EXISTING LAND USE:** Undeveloped

**PROPOSED LAND USE:** Residential

**SURROUNDING LAND USES:**

| SURROUNDING | LAND USE(S)             | ZONING | ANNEXATION STATUS |
|-------------|-------------------------|--------|-------------------|
| North       | US Highway              | N/A    | City              |
| South       | Residential             | MR-2   | City              |
| East        | Residential             | MR-2   | City              |
| West        | Low Density Residential | AR     | City              |

## **EXECUTIVE SUMMARY:**

This final plat application is for a replat to ninety (90) residential lots on the southeast corner of the intersection of US Highway 30 and Whitney Road. This application was submitted in conjunction with a future land use map amendment request and a zone change application to MR-2. The preliminary plat application was approved July 2015 by the Governing Body. Originally, this area was platted into commercial lots but now, the owner would like to sell this area as residential units.

This final plat is substantially similar to the preliminary plat that was submitted. The donation language on the plat has not been changed as requested by the Parks and Recreation Department during the preliminary plat phase. Additional connections to existing streets have also not been included as recommended by multiple departments. It was also recommended that the name Wilderness Court be changed to avoid confusion with Wilderness Trail. These comments, along with a few technical changes to the map, were expected to be addressed with the submittal of the final plat though they remain unresolved.

***Due to meeting the review criteria of Section 2.1.3.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of the final plat with the following conditions:***

- 1) The words "subdivision" and "City of" are removed from the title block;***
- 2) The donation statements are updated to donate the land to the City of Cheyenne, not the Parks and Recreation Department; and***
- 3) Complete an agreement with WyDOT concerning future cost sharing when traffic control improvements at US Highway 30 and Whitney Road are warranted.***

**PLAT DATA:** In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

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**COMPLIANCE WITH APPROVED PRELIMINARY PLAT** - *The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.*

The submitted final plat is substantially similar to the approved preliminary plat. There are ninety (90) residential lots over the 15+ acre area. These residential lots are served by two rights-of-way that are extended from the existing Saddle Ridge and two newly constructed cul-de-sacs. The donated land is also the same as shown on the preliminary plat. Multiple requests have been made to donate the land generally to the City of Cheyenne instead of calling out specific departments. As of the mailing of this report, the plat is still specifically donating the land to the Parks and Recreation Department. The Parks and Recreation Department has also expressed that they are not interested in taking Lot 1, Block 1 without further amenities added to it. Discussions for further amenities have not been had and other City departments are not interested in maintaining the lot.

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**CONDITIONS OF PRELIMINARY PLAT** - *The application meets any conditions or modifications of the approved preliminary plat.*

There were not any conditions placed on the preliminary plat. As of the mailing of this staff report, the modifications requested by City Staff have not been made to the map.

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**STANDARDS** - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

*Transportation Network:*

This plat has proposed to extend two existing streets, Campfire Trail and Horse Soldier, while constructing two new cul-de-sacs, Wilderness Court and Painted Rock Trail. The two blocks meet the standards as required by Article 4 of the UDC for connections. As noted during the preliminary plat phase by multiple departments, two additional connections to existing rights-of-way are recommended for the number of units proposed but are not required. It is expected that all streets will comply with the current standards set forth in Section 4.3.4 of the UDC, including detached sidewalk construction and tree lawn placement.

*Community Facility Fees:*

*Park Fees:*

As outlined in Section 4.2.5.c.2&3 and Table 4-1, UDC, Park fees are calculated as follows:

Total Plat Area: 15.7 acres  
(less) ROW Area: 3.2 acres  
(less) Dedicated Area: 1.5 acres  
(equals) Park Fee Subject Area: 11 acres

Land Acquisition Fee = \$350 x 11 or \$3,850  
Infrastructure Fee = \$350 x 11 or \$3,850  
(less) Previously Paid Fees = \$500 x 15.7 = \$7,850

Due to previously paid Community Facility Fees for the subject area, the applicant does not owe any Land Acquisition or Infrastructure fees. Though not owing the previously mentioned fees, the applicant will be subject to the Residential Enhancement Fee of \$400 per Dwelling Unit (DU). This fee is payable at the issuance of each building permit. With the proposed 90 lots, the estimated Enhancement Fee for this project is \$36,000.

*Open Space:*

With this development, a portion of the property is within a ¼ mile of the Saddle Ridge Park to the south. This, along with proximity to Saddle Ridge Elementary and future proposed Greenway, allows this subdivision to meet exceptions for requiring open space. The applicant has proposed dedicating Lot 1, Block 1 to the Parks & Recreation Department for greenway extension. The Parks & Recreation Department has said they are open to the idea but would like to see amenities added to the lot before they accept it. Other departments within the City have expressed they do not want to maintain Lot 1, Block 1. The developer has also proposed dedicating Lot 1, Block 2 to the Parks & Recreation Department but the lot would be used for drainage purposes. The Parks & Recreation Department has stated they are not interested in Lot 1, Block 2 since there is no recreational value. The Engineering Department has stated they will maintain the lot since it is used for drainage.

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**SURROUNDING DEVELOPMENT** - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This development should not create any undue influence on the surrounding area considering existing zoning. While the future land use map would not match, the submitted amendment request, if approved, would amend the future land use map to Urban Residential for the subject area.

**Reviewing Agencies w/ Comments:**

- Board of Public Utilities (Linda Gunter) **(FYI)**
  - o With the requested zone change from two commercial lots to ninety residential lots. The Owner / Developer is responsible for verifying the remaining available sewer capacity of the existing sewer system in the area to serve this project.
- City Surveyor (Jack Studley) **(FYI)**
  - o Boundary data and legal descriptions appear in order.
- County Assessor (Clarice Blanton) **(Developer Plans to Donate Lots Instead of Dedicate)**
  - o Would prefer to see under PLAT NOTES #1 and 2, '...is hereby dedicated to the City of Cheyenne...' instead of 'to be donated to'. With the current wording I would leave the ownership under Saddle Ridge LLC until a deed was recorded transferring ownership to the City of Cheyenne.
- Development Department (Josh Tetzlaff) **(Correct Prior to Signing)**
  - o Please remove the words "subdivision" and "City of" from the legal description in the title block.
  - o Plat Note #1: Parks & Rec stated in previous comments (see preliminary plat comments) that they are not interested in Lot 1, Block 1 without amenities being added. Please contact Parks & Rec to clear up.
  - o Plat Note #2: Lot 1, Block 2 should be donated to the Engineering Department for drainage purposes. Please correct on plat.
- Laramie County School District #1 (Chris Hout) **(FYI)**

- The area of the plat falls within the East Triad, with Saddle Ridge Elementary, Carey Junior High and East High schools as the respective "home" school students would register with and attend if space is available. The plat falls within the walk area for elementary. Students attending junior high and senior high would be eligible for busing.
- The current enrollments for each of these schools are as follows:
  - Saddle Ridge - at or over capacity, no space available. Note -- 2 modular classroom buildings (4 classrooms) will be placed on site over the summer of 2015 to help in accommodating additional boundary students. It is also anticipated that Saddle Ridge will be one of the schools included in the new Meadowlark Elementary 5th and 6th grade boundary. The current anticipated schedule for the opening of the new Meadowlark school is August of 2016. Bussing to Meadowlark will be provided.
  - Carey Junior High - slightly below capacity.
  - East High -- at or above capacity -- very limited space may be available for particular grades.
- Parks and Recreation Department (Teresa Moore) **(Correct Prior to Signing)**
  - Change the donated lot statements under Plat notes to donate to the "City of Cheyenne" not to the Parks and Recreation Department.
- WYDOT (Randy Griesbach) **(Complete Prior to Signing)**
  - WYDOT will need an agreement worked up with the developer to address future cost sharing when traffic control improvements at Whitney & US 30 are warranted.

**Reviewing Agencies w/o Comments:**

- Charter (Kurt Quinlivan)
- City Engineer (John Hall)
- Development Department (Brandon Cammarata)
- Engineering Department – Drainage (Mike Vinson)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – Traffic (Nathan Beauheim)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Environmental Health Department (Jennifer Escobedo)
- Fire Department (Jim Schamerhorn)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)

**Reviewing Agencies not Responding:**

- 911/Dispatch (Glen Crumpton)
- 911/Emergency Management (Rob Cleveland)
- Building Department (Linda Gunter)
- CenturyLink (Bob Bates)
- Cheyenne Light, Fuel & Power (Jack Whyatt)
- County Attorney (Mark Voss)
- County Clerk (Vicki Swanson)
- High West Energy (Lloyd Sisson)

**Other Comments Received:**

- None

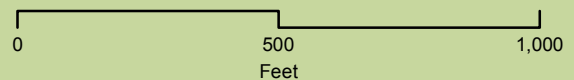
Encl: Final Plat Map  
Aerial Map

cc: Owner  
Agent/Applicant  
File

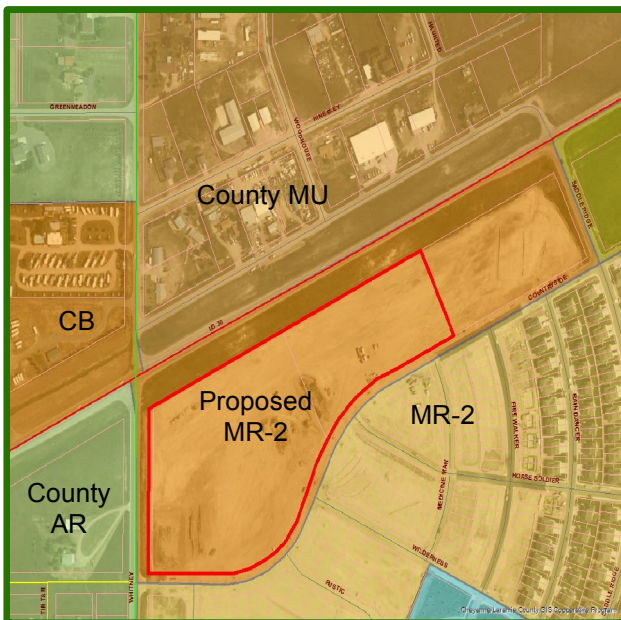
# Saddle Ridge, 7th Filing Comp Plan Amendment, Zone Change, & Final Plat



Applicant: Saddle Ridge, LLC  
Agent: John Edwards, Edwards Development, LLC  
Application Numbers  
Comp Plan: PLN-15-00011      Final Plat: UDC-15-00425  
Zone Change: UDC-15-00421



## Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

## Future Land Use

